

FD&C ACT (3)

11. FD&C Act Drug Listing / Establishment Requirements

Title: Drug Establishment Registration and Drug Listing

Jurisdiction: United States

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act, §510; 21 U.S.C. §360

Plain English Summary:

The FD&C Act establishes registration and listing requirements for establishments involved in manufacturing, preparing, propagating, compounding, or processing drugs. An Ayurvedic business manufacturing or processing a product that qualifies as a drug therefore needs to consider FDA establishment registration and applicable drug listing obligations.

The Exact Legal Text:

21 U.S.C. §360 contains the statutory requirements concerning registration of establishments and listing of drugs, including information that must be submitted to FDA.

Keywords/Triggers:

FDA drug establishment registration, Ayurvedic manufacturer registration, drug listing, FDA registration USA, Ayurvedic drug manufacturer, establishment registration, NDC listing, 21 USC 360

12. FD&C Act FDA Inspection of Drug Facilities and Records

Title: FDA Inspection of Drug Establishments and Records

Jurisdiction: United States

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act, §704; 21 U.S.C. §374

Plain English Summary:

The FD&C Act gives FDA authority to inspect establishments and examine relevant facilities, processes, and records covered by the Act. For an Ayurvedic drug manufacturer, this means manufacturing and compliance records need to be maintained in a manner that allows FDA inspection where legally authorized.

The Exact Legal Text:

21 U.S.C. §374 provides FDA inspection authority over establishments, including access to relevant facilities and records subject to the statutory requirements.

Keywords/Triggers:

FDA inspection Ayurvedic manufacturer, drug facility inspection, FDA records, manufacturing inspection, FDA compliance audit, Ayurvedic drug records, 21 USC 374, FDA inspection authority

13. FD&C Act Importation of Drugs

Title: Import Requirements for Drugs

Jurisdiction: United States

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act, §801; 21 U.S.C. §381

Plain English Summary:

Imported Ayurvedic drugs must comply with the applicable requirements of the FD&C Act. FDA can refuse admission to drugs that appear to violate U.S. requirements, making this provision particularly important for an Indian Ayurvedic company exporting products into the United States.

The Exact Legal Text:

21 U.S.C. §381 governs the admission of drugs and other FDA-regulated products offered for import into the United States and provides authority for refusal of admission where statutory requirements are not met.

Keywords/Triggers:

Ayurvedic product import USA, FDA import refusal, Indian Ayurvedic export, drug import requirements, FDA customs, refused drug entry, 21 USC 381, importing Ayurvedic medicine

14. FD&C Act New Drug Definition and “New Drug” Status

Title: Definition of New Drug

Jurisdiction: United States

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act, §201(p); 21 U.S.C. §321(p)

Plain English Summary:

You already have this provision in your document, but it deserves to remain separate from the general drug definition because drug and new-drug status are different legal questions. A product may meet the definition of a drug and additionally be considered a new drug, triggering the approval requirements under §505.

The Exact Legal Text:

21 U.S.C. §321(p)(1) defines a new drug in part by whether the drug is generally recognized by qualified experts as safe and effective under the conditions prescribed, recommended, or suggested in its labeling.

Keywords/Triggers:

new drug Ayurvedic medicine, GRAS versus new drug, generally recognized safe effective, new drug classification, Ayurvedic FDA approval, 21 USC 321(p), FDA new drug, drug approval

15. FD&C Act New Drug Application

Title: Requirement for FDA Approval Before Marketing a New Drug

Jurisdiction: United States

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act, §505(a); 21 U.S.C. §355(a)

Plain English Summary:

A new drug generally cannot be introduced into interstate commerce unless an FDA-approved application is effective for that drug. Therefore, an Ayurvedic product classified as a new drug cannot avoid the drug approval framework merely because it is traditionally used in Ayurveda.

The Exact Legal Text:

21 U.S.C. §355(a):

No person shall introduce or deliver for introduction into interstate commerce any new drug, unless an approval of an application ... is effective with respect to such drug.

Keywords/Triggers:

Ayurvedic new drug approval, FDA NDA, unapproved Ayurvedic drug, new drug application, FDA marketing approval, interstate commerce, 21 USC 355, Ayurvedic medicine approval